

Gudiya @ Sapna v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 28 May 2025 · 2025:AHC-LKO:32128-DB · CIVIL MISC REVIEW APPLICATION DEFECTIVE No. 222 of 2024 · **Review rejected; no error apparent in dismissal for want of owner's NOC.**

HEADNOTE

Review of the dismissal of a writ seeking restoration or a fresh electricity connection without the owner's no-objection certificate. The Lucknow Bench held that clause 4.4 of the Electricity Supply Code 2005 requires the owner's NOC before a connection can be given; the applicants produced none and showed no error apparent on the face of the record. Review rejected.

FACTUAL SUMMARY

The applicants sought review of the 21 September 2024 dismissal of Writ-C No. 8158 of 2024, which had asked for a mandamus to restore an earlier electricity connection or to grant a new one without a no-objection certificate from respondent no. 6, the owner of the premises. A delay of 22 days in filing the review was condoned. They still produced no owner's NOC and pointed to no error in the earlier reasoning.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

owner NOC for connection

HOLDING

Paragraph 4.4 of the Electricity Supply Code 2005 provides that an electricity connection cannot be given without a no-objection certificate from the owner of the premises. The review applicants produced none and showed no error apparent on the face of the 21.09.2024 dismissal of their writ seeking restoration or a new connection without that NOC. Review rejected. ¶ 1-4